

File No.: EXP202305402

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on April 9, 2023. The complaint is directed against CAMDEN TAPAS C.B. with NIF E19581883 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The claimant indicates that the respondent has installed an additional camera outside its establishment, in addition to those already analyzed in the previous file EXP202104188, which is manifestly directed at the public road. Representatives of the respondent have disseminated images from the aforementioned video surveillance system capturing the public road through the social network FACEBOOK.

The claimant provides images from the respondent's video surveillance system, showing the field of capture of the new camera. However, no evidence or indication is provided that proves the publication on the social network FACEBOOK of images from the said video surveillance system.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 08/05/23, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on May 19, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

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On July 21, 2023, a response was received at this Agency, accompanied by images of the field of vision of the external cameras of the video surveillance system subject to this complaint, including camera 6 mentioned in the complaint, which was not included in the previous file EXP202104188. Upon analyzing the images from camera 6, it is observed that its field of vision exceeds the terrace of the establishment, capturing images of the public road. Additionally, the Contract for the maintenance services of the video surveillance system is provided.

THIRD: On July 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, through the Single Edict Board, after the recipient was absent in two attempts at postal notification.

After the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The claimant states that the respondent has installed an additional camera outside its establishment, in addition to those already analyzed in the previous file EXP202104188, which is manifestly directed at the public road.

The claimant provides images from the respondent's video surveillance system, showing the field of capture of the new camera.

SECOND: On July 21, 2023, a written response to the forwarding of the complaint was received at this Agency. In its response, the respondent provides images of the

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the field of vision of the exterior cameras of the video surveillance system subject to this claim, including camera 6 mentioned in the claim document, which was not included in the prior file. Upon analyzing the images from camera 6, it is observed that its field of vision exceeds that of the terrace of the premises, capturing images of the public road.

THIRD: The Spanish Agency for Data Protection has notified the respondent of the Agreement to Initiate this Sanctioning Procedure, without the respondent having submitted allegations or evidence contradicting the reported facts.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of

"processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

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III

Infringement

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that individuals or legal entities, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of ensuring the safety of individuals and property, as well as their facilities.

The processing of personal data is subject to the principles of processing contained in Article 5 of the GDPR. In this case, it is worth highlighting the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in video surveillance means that images of the public road cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Bodies with prior government authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum necessary portion to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Consequently, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose.

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fin, or it becomes impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

The placement of cameras directed towards the private property of neighbors with the intention of

intimidating them or affecting their private sphere without just cause is therefore not permitted. Images cannot be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces. Furthermore, it is considered disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers. For the reasons stated, it is considered that a violation of the regulations on personal data protection has occurred by the party responsible for a surveillance system that is capturing images of public roads in a non-proportional manner.

IV

Classification and qualification of the infringement for the purposes of prescription

In accordance with the evidence available, which has not been refuted in the sanctioning procedure, it is considered that the known facts constitute an infringement attributable to the party being claimed, for violating Article 5.1.c) of the GDPR.

Such infringement is classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the prescription period for infringements, Article 72.1 of the LOPDGDD considers very serious infringements, which shall prescribe after three years, for infringements that constitute a substantial violation of the articles mentioned in Article 83.5 of the GDPR and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

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V

Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

The balance of the circumstances considered, with respect to the infringement committed by violating the provisions of Article 5.1 c) of the GDPR, allows for the setting of a fine of 500 euros.

It should be noted that the voluntary payment of the proposed amounts does not exempt from proving the regularization of the surveillance system, in accordance with the current regulations.

VI

Measures

As already indicated in the initiation agreement, and in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame [...],” the party being claimed is required to adopt the following measures:

- To have proceeded with the removal of the analyzed camera from its current location or to its reorientation, in such a way that the viewing of the images observed evidences that no areas of the public road are being captured.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO IMPOSE on CAMDEN TAPAS C.B., with NIF E19581883, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros.

TO DECLARE that CAMDEN TAPAS C.B., with NIF E19581883, has infringed the provisions of Article 5.1.c) of the GDPR, an infringement classified under Article 83.5 of the GDPR.

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SECOND: TO ORDER CAMDEN TAPAS C.B., with NIF E19581883, to comply with the provisions of Article 58.2.d) of the GDPR, within ten days from the date this resolution becomes final and enforceable, to demonstrate that it has implemented the following measures:

- To have removed the analyzed camera from its current location or to have reoriented it in such a way that the viewing of the images evidences that no areas of the public road are captured.

THIRD: TO NOTIFY this resolution to CAMDEN TAPAS C.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

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If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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